

ORIGINAL

(S E R V E D)
(May 21, 2004)
(FEDERAL MARITIME COMMISSION)

**FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

May 21, 2004

DOCKET NO. 04-04

WORLD-WIDE EXPRESS, INC.,

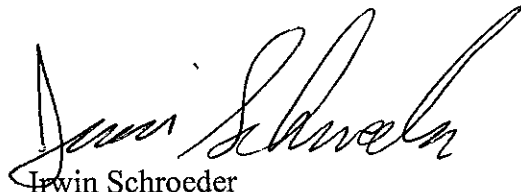
v.

STEVEDORING SERVICES OF AMERICA et al.

**RULING APPROVING
NOTICE OF DISMISSAL
AND ORDER OF DISMISSAL**

On February 17, 2004, World-Wide Express filed a complaint with the Federal Maritime Commission alleging a violation of the Shipping Act of 1984 in connection with a shipment of empty containers from Shanghai to Los Angeles. Respondents were involved in arranging for the shipment. Complainant sought reparations, penalties and attorney fees. Before the time for filing a responsive pleading, the complainant consented to an enlargement of time to file and then to a further enlargement of time. Before a responsive pleading was filed, complainant advised the

Federal Maritime Commission that it was withdrawing its complaint with prejudice. See, Notice of Dismissal filed on May 4, 2004, by analogy to Rule 41(a)(1) of the Federal Rules of Civil Procedure. Telephone inquiry to counsel to clarify the status of the case disclosed that the complainant's request for a dismissal was not part of settlement of this case but merely reflected the situation of the parties after various steps were taken to resolve a larger controversy in another forum. Dismissal of this action appears to be consistent with the requirements of the Shipping Act and with the public interest. See, *XM International v. Brilliant Logistics Group*, 29 S.R.R. 1492 (ALJ, 2003) The Notice of Dismissal is, therefore, **approved**. It is hereby **ORDERED** that the complaint is **DISMISSED with prejudice**.



Irwin Schroeder
Administrative Law Judge